

DRISTI CASE FILE - FICTIONAL DOCUMENT PACK

IN THE COURT OF THE JUDICIAL FIRST CLASS MAGISTRATE-I, KOLLAM

C.C. / S.T. No. ST/412/2025 (arising out of CMP/1842/2025)
Complaint under section 138 of the Negotiable Instruments Act, 1881

APPLICATION FOR WITHDRAWAL

Withdrawal of the application for production of the cheque return memo

Sunil Varghese,
aged 42, 14 Example Lane, Asramam, Kollam 691002
... **Complainant**

Versus

Anand Traders, a sole proprietorship,
represented by its proprietor Arun Das, aged 39,
25 Sample Market Road, Chinnakada, Kollam 691001
... **Accused**

Case title	Sunil Varghese v. Anand Traders
Case numbers	CMP/1842/2025 ST/412/2025
Filing number	KL-DUMMY-001386-2025
Court	Judicial First Class Magistrate Court-I, Kollam
Filed by	Adv. Ramesh Menon, counsel for the complainant
Application withdrawn	Production of documents, 8 August 2025
Submission ID	KL-DUMMY-001386-2025-AP4

The complainant respectfully submits as follows:

- The complainant filed an application on 8 August 2025 seeking a direction to the drawee bank to produce the original cheque return memo dated 17 April 2025.
- That application was returned on scrutiny with defects noted by the registry.
- On a verification of the records, the complainant finds that the cheque return memo is already on record, having been produced along with the complaint on 12 June 2025 in the initial filings.
- The direction sought is therefore no longer necessary, and the complainant does not propose to cure the defects or to re-present the application.
- No order has been passed on the said application, and its withdrawal will not affect any other proceeding in this case.

Prayer

It is therefore most respectfully prayed that this court may be pleased to permit the complainant to withdraw the application dated 8 August 2025 for production of the cheque return memo, and pass such further orders as this court may deem fit and proper.

Place: Kollam Date: 10 August 2025

Adv. Ramesh Menon

Counsel for the complainant

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